

Court No. - 21

Case :- WRIT - C No. - 3896 of 2018

Petitioner :- Mukul Pandey

Respondent :- State Of U.P.

Counsel for Petitioner :- Virendra Kumar Yadav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ajay Bhanot,J.

Heard learned counsel for the petitioner and Sri Mahboob Ahmad, learned counsel for the respondents No. 2 and 3 and learned Standing Counsel for the respondent No.1.

It is contended that the recovery proceedings have been initiated without following the procedure prescribed under Clause 6.8 of the U.P. Electricity Supply Code. It is submitted that no notice or provisional assessment was ever issued to the petitioner nor any date, place and time was fixed for filing objection of personal hearing and straightaway a final assessment has been made and the recovery certificate has been issued.

Learned counsel for the respondent Nos. 2 and 3 on the basis of instructions has produced a copy of the inspection report, final assessment order and recovery certificate before us. On specific query being made, as to whether notice, if any, for provisional assessment was given to the petitioner fixing a date, time and place for filing objection on hearing, learned counsel appearing for the respondents No. 1 and 2 has not been able to satisfy us that the procedure as prescribed by clause 6.8 was followed.

This Court in **Ashok Kumar and others Vs. State of U.P. and others, 2008 (6) ADJ 660 (DB)** has considered the provisions of the Electricity Supply Code 2005 and held that the said provisions are strictly to be followed for making assessment in case of theft of electricity.

In the present case, we find that there is nothing on record to indicate that even a provisional assessment notice was issued to the petitioner and no opportunity was given to him to file an objection to the provisional assessment, nor opportunity of hearing was afforded.

Once it is established that the procedure prescribed for provisional assessment has not been followed, the same cannot be said to be in accordance with law and thus the final assessments consequential recovery being made is also rendered illegal.

As a result, the writ petition stands allowed. The impugned demand notice dated 15.11.2017 (Annexure-1 to the writ petition) is hereby quashed.

It is open to the respondents to prepare a fresh provisional assessment order and serve the same upon the petitioner. The final assessment order shall be made after considering petitioner's objection, giving reasons to meet the objections, if any, filed by the petitioner in the light of observations made in **Ashok Kumar (supra)**.

Order Date :- 30.1.2018

Pravin